UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,	No. 6:18-CR-06018-DGL-MWP
v.	Hon. David G. Larimer
JEFFREY BERNECKY,	**CERTIFICATION OF JEFFREY BERNECKY**
Defendant.	**(28 U.S.C. § 1746)**

Jeffrey Bernecky declares as follows:

I. Background

1. I am the defendant in this case. I make this declaration in support of my motion to clarify or modify the conditions of my supervised release and for appointment of counsel. I have personal knowledge of the facts stated here, except where I say otherwise.

2. On June 12, 2018, this Court sentenced me to 120 months in prison, to be followed by ten years of supervised release. At sentencing I was represented by Mark D. Hosken of the Federal Public Defender's Office, who was appointed to represent me. **[Confirm that Mr. Hosken was appointed, not privately retained.]**

3. Both of my convictions are for child-pornography offenses: possession in this case, and possession and distribution in my earlier case, No. 6:11-CR-06045. Neither conviction involved physical contact with a child, and I have never been charged with any offense involving physical contact with a child. **[Confirm.]**

4. My term of supervised release began on July 30, 2026. I live in Rochester, New York. I have been employed **[full-time]** since **[month and year]**.

5. Since my supervision began, I have followed every instruction my probation officer and my treatment providers have given me, including the instructions described in this declaration, which I am asking the Court to clarify. **[Confirm. If there is anything Probation or treatment staff could point to as not following an instruction, tell us before you sign.]**

II. Intake and Standard Condition 12

6. On or about **[July 30, 2026]**, at **[the Probation Office in Rochester]**, **[my probation officer, name]** went over my conditions of supervision with me and had me sign **[describe the document, for example a form acknowledging the conditions of supervision]**. **[Say whether you were given a copy. If you have it, it will be attached as Exhibit E.]**

7. The conditions I was required to sign included Standard Condition 12 in the form printed on page 4 of my Judgment: "If the probation officer determines that you pose a risk to another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction." **[Confirm the wording matches. If you do not have a copy, this will say "to the best of my recollection."]**

8. No one at the Probation Office showed me or told me about the replacement language in the Amended Standing Order attached as Exhibit D, and no one told me that Standard Condition 12 had been changed in 2019. **[Confirm.]**

9. I have never received notice of, been asked to attend, or attended any proceeding at which this Court considered whether I pose a risk of committing further crimes against another person. No one has told me that the Court has made that determination. **[If you have checked the docket in this case, add: "I reviewed the docket in this case on (date) and found no order making that determination."]**

10. Exhibit D is a true copy of the Amended Standing Order entered by this Court on March 22, 2019, *In re United States v. Boles* (Geraci, C.J.). **[Say where the copy came from, for example the Court's website or the Clerk's Office.]**

III. The Treatment Provider and Its Documents

11. **[My probation officer referred me to]** R.K.K.S. Mental Health Counseling PLLC for the sex-offense-specific treatment and mental-health treatment required by my Judgment. **[Confirm who chose R.K.K.S. and how.]** I began treatment there on or about **[date]**.

12. On July 30, 2026, I signed the Authorization to Release Confidential Information attached as Exhibit B. It authorizes "RKKS Forensic Counseling" to release information about my treatment to the United States Probation Office for the Western District of New York. **[Say where you signed it and who gave it to you: Probation or R.K.K.S.]** Exhibit B is a true copy of the form I signed.

13. On August 19, 2026, as part of my intake at R.K.K.S., I signed the three-page Treatment Contract attached as Exhibit A. **[Say who gave it to you, and whether anyone told you that you had to sign it to be accepted into treatment or that refusing would be reported to Probation. Give the words used as best you remember.]** Exhibit A is a true copy of the Treatment Contract I signed.

IV. Instructions About Sexual Partners and Online Profiles

14. The Treatment Contract requires me to disclose my offense history in full, and to provide treatment staff "acceptable proof of informed consent," before engaging in a sexual relationship. Ex. A at 3. No one at R.K.K.S. has explained to me what would count as acceptable proof. **[Confirm, or describe what you were told. If anyone has also told you that you need your therapist's permission before a sexual relationship, say who, when, and what was said.]**

15. On or about **[date]**, **[name and role: therapist, probation officer, or both]** told me that if I use an adult dating or social-media application, such as Grindr, my profile must display my conviction. **[Confirm who said it, when, whether it was spoken or written, and whether it covers only dating apps or every social-media profile.]**

16. Since my release I have gone to work and come home. I have not pursued a dating or sexual relationship. The reason is the requirements described in paragraphs 14 and 15: any relationship would have to begin with a full account of my offense history to the other person and proof of that person's consent to treatment staff, and any dating profile would have to announce my conviction. **[Confirm, and add a sentence in your own words about why this has kept you from pursuing a relationship.]**

V. Instructions About Online Communication

17. I enjoy playing video games. Until the instruction described in paragraphs 19 and 20, I played games on my phone, including games that let players exchange typed messages. I played them only on my phone, which has the Probation Office's monitoring software installed. **[Confirm. Naming the games is optional.]**

18. Before **[date of the instruction in paragraph 19]**, I exchanged typed messages in these games with other players whom I did not know personally. In those conversations I stated that I would not speak with anyone under 18. **[If true, add: "To my knowledge, every person I exchanged messages with was an adult," and say how you knew.]**

19. On or about **[date]**, my probation officer, **[name]**, told me that she had noticed that I had been speaking with people in online games, and that I needed to stop. I had not told her about those conversations. **[Confirm.]**

20. She told me that I may not speak with anyone while playing online games, because there is no way to verify their age or identity, and that I may not speak with anyone I do not personally know. She told me I may speak with people I know in real life. The instruction is not limited to people under 18. It applies to adults I do not personally know. **[Confirm whether she said adults were included or whether that is how you understood "anyone." Confirm whether the instruction covered only online games or all online communication, such as social media, messaging apps, and forums.]**

21. No one has told me that any person I exchanged messages with in an online game was under 18. **[Confirm.]**

22. No one told me to stop playing video games. But after my probation officer gave me that instruction, I stopped playing online games altogether, and I have not played since. I have not spoken with anyone in an online game since then. **[If also true, add: "I have not communicated online with anyone I do not personally know since then."]**

VI. The 17-and-Older Event

23. On or about **[date]**, I attended **[describe the event]** in **[place]**. Admission was limited to people 17 and older. **[Say how the age limit was enforced, for example an ID check at the door. If true, add: "I did not have contact with anyone I knew or believed to be under 18 at the event."]**

24. Afterward, **[name and role at R.K.K.S.]** told me that I should have told treatment staff about the event before I went, because an event with that age limit had "potential for pornographic material." **[Say whether there was any sexual material at the event.]**

25. My probation officer then told me that I should not have gone, because minors could possibly have been there, including minors who could have snuck in without my knowing. I said that a grocery store carries a much greater chance of being near minors than an event like that. She answered, "a judge wouldn't see it that way." **[Give the date, say how Probation learned of the event, and say whether "snuck in" was her exact wording or the substance of what she said.]**

VII. Family Gatherings

26. I have no biological or adopted children.

27. After this Court sentenced me, and while I was in prison, my sister had **[number]** children. They are now **[ages]**.

28. My parents are not together. My mother, my stepfather, and my father know about my convictions. **[Confirm whether your sister knows.]**

29. My family gathers for Thanksgiving, Christmas, and **[other holidays or occasions]** at **[whose home or homes]**. My sister and her children are not expected at the gatherings I attend. But family holidays are not planned to the minute, and my sister could arrive with her children without notice while I am there. **[Confirm, and name any other children, such as cousins' children, who could be present.]**

30. I have not been at a family holiday gathering since **[year]**. **[Confirm.]**

31. **[I have / I have not]** asked my probation officer for permission to attend family gatherings where my sister's children are present. **[If you asked, say when and what she said.]**

32. If my sister arrives with her children while I am at a family gathering, I will not be alone with any child, and my mother, my stepfather, or my father will be present. **[Confirm these terms work for you.]**

VIII. Treatment Participation and Statements by Treatment Staff

33. I have attended every scheduled treatment session since I began at R.K.K.S. **[Confirm. List any session you missed or were late to, and why.]** I will continue to attend every scheduled session, complete every assignment I am given, and discuss in treatment the conduct for which I was convicted.

34. During an individual session at R.K.K.S. in the week of **[September 28, 2026]**, my therapist, **[name]**, told me that sex offenders are not allowed to have or take Viagra, because it increases sex drive. She said that for Viagra prescriptions, a search of the sex-offender registry is run to make sure the person is not on it. I asked about people who have a real medical need, such as trouble achieving an erection in a healthy adult relationship. She said that we still are not allowed. The subject did not come up because of anything about me. **[Confirm.]**

IX. The Monitoring Program

35. On or about **[date]**, I received the Computer Monitoring Program Participant Agreement attached as Exhibit C from **[my probation officer, name]**. **[Say whether you signed it and on what date.]** Exhibit C is a true copy of that agreement.

36. Monitoring software was installed on my phone, a **[make and model]**, on or about **[date]**, by **[who installed it or walked you through installing it, for example the monitoring company]**. **[Describe the steps briefly.]**

37. I was told that the monitoring software can take a full screenshot of my phone's screen at any time. **[Say who told you and when.]**

38. No one from the Probation Office or the monitoring company has told me that anything on my phone is protected from viewing, or that any procedure exists to prevent Probation from viewing lawful material, such as my typed conversations with other players in a game, my communications with this Court, or my drafts of legal papers. No one has told me how the monitoring is designed to avoid reading privileged information. I have not been given any written description of how the monitoring handles any of that material. **[Confirm. If you were told anything on this subject, say who, when, and what.]**

39. I am representing myself on this motion **[and in a pending proceeding in Monroe County Court concerning my sex-offender risk level]**. I prepare my legal papers, including this motion, on **[name each device]**, which **[is / are]** monitored. **[Be exact. Probation will read this paragraph.]**

X. Counsel

40. I cannot afford to hire a lawyer to represent me on this motion. I will submit a CJA Form 23 financial affidavit. **[Confirm.]**

I declare under penalty of perjury that the foregoing is true and correct.

Executed on October ___, 2026, at Rochester, New York.

_____

Jeffrey Bernecky
Defendant, pro se
312 Lake Ave #7
Rochester, NY 14608
(585) 202-7634

EXHIBIT A

R.K.K.S. Mental Health Counseling PLLC

Treatment Contract, executed August 19, 2026

RKKS MENTAL HEALTH COUNSELING PLLC

TREATMENT CONTRACT

I, Bernecky, Jeffrey , hereby enter this Treatment Contract (the "Treatment Contract") with R.K.K.S. Mental Health Counseling PLLC (the "Practice").

REQUIREMENTS

1. I agree to be honest and assume full responsibility for my problematic behavior. I understand that successful treatment depends upon full acknowledgement of my actions and thinking patterns.
2. I will actively participate in treatment. I understand that the length of time I spend in treatment is dependent on my readiness to change, my willingness to comply with treatment tasks, fulfill treatment goals, and demonstrate sustained change in my thinking and behaviors.
3. I understand that I may be asked to discuss my treatment progress and treatment assignments in group therapy, with my Probation Officer, and other significant people in my life.
4. I understand that my behavior has had an impact on significant relationships in my life. I will actively encourage the significant people in my life to participate in treatment on an as-needed basis as determined by treatment staff.

CONFIDENTIALITY

1. I acknowledge that as a requirement of my conditional release I am required to obtain Mental Health Counseling and that my Personal Health Information may be shared with United States Probation System pursuant to the *Authorization to Release Confidential Information Mental Health Treatment Program* agreement executed by me, which agreement I acknowledge is incorporated as part of this Treatment Contract. I further acknowledge that as part of my intake to the Practice I have executed an *Authorization for Release of Protected Health Information* agreement which allows the Practice to receive and disclose my Personal Health Information with United States Probation.
2. I understand that treatment staff will provide verbal and written reports to United States Probation and other individuals and agencies involved in my treatment pursuant to the terms of my probation and the agreements referenced in the preceding paragraph.
3. I will not disclose any information regarding another client to anyone outside this program. I agree to have no contact with other clients outside my treatment group without prior approval of treatment staff. I will keep treatment staff informed of the nature of any contact I have with another client outside treatment sessions.
4. I understand that the expression of suicidal or homicidal ideation will result in one or more the following:notification to my Probation Officer; a referral to mobile crisis; or a mental hygiene arrest.

ACCESS TO CARE

1. I understand that if I cannot contact my treatment provider in **the case of an emergency, I should call or text 9-1-1, lifeline 2-1-1, or the suicide Prevention Hotline 1-800-273-8255**

CODE OF CONDUCT

1. I will attend all treatment sessions and be on time. I understand that the only acceptable excuse for absence or lateness is a verifiable medical or other emergency. I will notify the appropriate staff member as soon as possible about any situation that affects my attendance or punctuality. I understand that after three unexcused absences my case will be reviewed for ***discharge***.
2. I will pay my assigned co-pay at the time of each session unless I have made other arrangements with the Practice and my Probation Officer.
3. I will not engage in the use of or possess illegal drugs, or controlled substances for which I do not have a physician prescription, and I will refrain from excessive use of alcohol.
4. I will not become verbally or physically threatening or assaultive toward any staff member or client either inside or outside the office. I will not bring any item that may be used as a weapon to treatment; doing so will result in ***immediate discharge*** and potential legal action.
5. I agree to avoid situations and behaviors that will place me at high risk of engaging in problematic behavior. I understand that I am required to notify treatment staff within 24 hours of any relapse in problematic behavior
6. I will notify treatment staff of any change in my residence or employment status and any other changes in relevant risk factors (including, but not limited to, relationship status, social networks, substance abuse, significant changes in income/debt, mobility [vehicle, Driver License], health status, criminal behaviors [outside of or in addition to Instant Offense or pending charges], medication compliance/changes, means of communication, etc.).

CONSEQUENCES AND DISCHARGE CRITERIA

1. I understand that my supervising officer will be notified of any violation of this Treatment Contract. I also understand that law enforcement may be contacted if it becomes necessary to maintain the safety of potential victims and/or the community.
2. I understand and agree that engaging in any of the following behaviors will result in **IMMEDIATE DISCHARGE** from the Practice:i) re-offense that includes the same or similar charge as the Instant Offense(s); ii) violation of the confidentiality of another client; iii) violent, unlawful, or stalking (in person or online) behavior towards the staff or clients of the Practice; iv) stealing behavior towards the staff or clients of the Practice; v) bringing any item that may be used as a weapon to treatment; or vi) other violations of the terms of this Treatment Contract, or other problem behavior not outlined in this Treatment Contract, as determined in the sole discretion of the staff of the Practice.
3. I also understand and agree that engaging in any of the following behaviors will result in **CONSIDERATION FOR DISCHARGE** from the Practice by the Treatment Team:i) violation of the terms of this Treatment Contract; or ii) failing to attend three appointments without a verifiable medical or emergency excuse. In considering whether discharge is appropriate, the Treatment Team will consider the frequency of the problematic behavior, client accountability for the behavior, previous interventions for same or similar behavior, risk factors that increase likelihood of re-offense, and the safety of the community.
    a. The Treatment Team is comprised of all therapists in the Practice, the Probation Officer, and the Probation Supervisor.

SPECIAL CONDITIONS

- ☐ I understand that while under pre-trial supervision or pretrial diversion I am not permitted to talk about the offense for which I am currently being investigated.
- ☑ I understand that I am required to disclose all my intimate partners to treatment staff. I understand that I need to provide acceptable proof of informed consent to treatment staff which includes disclosure of my offense history in full prior to engaging in a sexual relationship.
- ☑ I understand that I am not permitted to give or receive payment for sexual behaviors.
- ☑ I also understand that it is also not permitted to send or to receive sexually explicit images or narratives without prior approval by treatment staff.
- ☑ I understand that the use of any platforms including but not limited to (social media, dating sites, email, blog/discussion forums, gaming services, text apps, photo sharing sites, chat rooms, etc.) should be approved by treatment staff prior to use.
- ☑ I understand that ongoing assessment of my progress through psychological and physiological evaluation (including but not limited to computer based sexual interest assessments and polygraph) will be part of treatment.
- ☑ To be successful in treatment I understand that it is necessary discuss my offense conduct, fantasies, sexual behaviors, sexual thoughts, masturbation patterns, sexual history, and any other relevant topics.
- ☑ I will not purchase, possess, view, produce, or use sexually stimulating material(s) of any kind as defined by my treatment staff. I understand that I am required to notify treatment staff within 24 hours of any incidents.
- ☑ I understand that my contact with individuals under the age of 18, potential or former victims, codefendants, vulnerable populations (as defined by treatment staff) will be reviewed for appropriateness by treatment staff. I also agree to notify treatment staff within 24 hours of any accidental, incidental, or intentional contact with any of the above.
- ☐ I agree to abide by the following special conditions:
- ☐ No special conditions designated

I, Bernecky, Jeffrey , affirmatively acknowledge that I have read and understand that I am required to follow all the conditions listed above regarding my treatment and behavior. If I have any questions about this Treatment Contract, I have discussed them to my satisfaction with the person in charge of my treatment

Client Signature:  Date: 08/19/2026

EXHIBIT B

Authorization to Release Confidential Information

(RKKS Forensic Counseling to the United States Probation Office, Western District of New York), executed July 30, 2026

hereby authorize RKKS Forensic Counseling to release confidential
(Name of Program)

information in its possession to the United States Probation Office in the Western District of New York
(Name of Court)

The confidential information to be released will include: date of entrance to program; attendance records; drug detection test results; type, frequency, and effectiveness of therapy (including psychotherapy notes); general adjustment to program rules; type and dosage of medication; response to treatment; test results (e.g., psychological, psycho-physiological measurements, vocational, sex offense-specific evaluations, clinical polygraphs); date of and reason for withdrawal or termination from program; diagnosis; and prognosis.

This information is to be used in connection with my participation in the above-mentioned program, which has been made a condition of my post-conviction supervision (including probation, parole, mandatory release, supervised release, or conditional release), and may be used by the probation officer for the purpose of keeping the probation officer informed concerning compliance with any condition or special condition of my supervision. I understand that this authorization is valid until my release from supervision, at which time this authorization to use or disclose this information expires. I understand that information used or disclosed pursuant to this authorization may be disclosed by the recipient and may no longer be protected by federal or state law.

I understand that I have the right to revoke this authorization, in writing, at any time by sending such written notification to the program's privacy contact at:

RKKS Forensic Counseling
(Name and Address of Program)

I understand that if I revoke this authorization to release confidential information, I will thereby revoke my authorization to further disclosure of such information. I also understand that revoking this authorization before I satisfy the condition of my supervision that requires me to participate in the program will be reported to the court. My revocation of authorization under such circumstances could be considered a violation of a condition of my post-conviction supervision.

X _____
(Signature of Parent or Guardian if Client is a Minor)

X _____
(Signature of Client)

X 7-30-26
(Date Signed)

EXHIBIT C

Computer Monitoring Program

Participant Agreement

Computer Monitoring Program Participant Agreement

General Provisions

1. I, _____, have been placed in the Computer Monitoring Program as ordered by the Court. I agree to comply with all program rules set forth in this agreement, and the instructions of my probation officer. I agree to install, or allow to be installed at my own expense, equipment or software to monitor any approved computer or internet ready device.

2. I shall notify the U.S Probation Office, in advance, of any computer(s)/connected device(s), internet capable devices and/or gaming devices I own or have access to. I shall notify the probation officer, in advance, of any additional computer/connected devices I acquire or have access to during the course of my supervision.

3. I shall not use, own, or access any device which allows internet access other than what I have been authorized to use by the Probation Office. This includes, but is not limited to, internet appliances, mobile telephones, tablets, electronic games, gaming consoles, blu ray players, and SMART TVs.

4. I understand that I will complete the Computer/Internet Data Form and return it within seven (7) days.

5. While using my monitored device, I shall not use any form of "in-private" browsing at any time.

6. I shall notify the U.S. Probation Office of any alterations to computer(s)/connected device(s) and/or passwords/screen names prior to executing change. (i.e. new programs, email accounts, social networking accounts, etc.).

7. I agree not to attempt to remove, tamper with, reverse engineer, or in any way circumvent the monitoring software and/or hardware.

8. I understand that I am prohibited from using removable, bootable media to boot my computer to any operating system.

9. I understand that I will not use any encrypted email accounts.

10. I understand that I am prohibited from creating, posting, and/or using misleading profiles.

11. I shall not access any Internet Service Provider account or other online service using someone else's account, name, designation, or alias.

12. I shall not utilize any service that conceals or spoofs my Internet Protocol address.

13. I shall not have another individual access the Internet on my behalf to obtain files or information unless pre-approved by the probation officer.

14. I agree not to employ any evidence cleaning utility, or defragmentation technology unless pre-approved by probation officer. This includes, but is not limited to, utilizing the "system restore" or defragment function.

15. I agree to obtain permission and coordinate with my probation officer prior to ALL computer repairs and/or alterations to my computer hardware and or software.

16. I shall not purchase, download, possess and/or install any anti-virus, anti-spyware, firewall, and/or internet security application without advanced authorization by the U.S. Probation Office and my probation officer.

17. I shall not use any type of encryption unless pre-approved by my probation officer.

18. I understand that my supervising officer may use measures to assist in monitoring compliance with these conditions, such as placing tamper resistant tape over unused ports to seal my computer case. I will not tamper with any of these efforts to monitor my system.

19. I will notify all individuals who have access to my computer system/internet accessible device that it is subject to monitoring and/or search/seizure.

20. I shall not alter the current operating system (i.e. Windows, Linux, etc.) on any authorized computer without the approval and authorization from my probation officer.

21. I shall permit the seizure and removal of hardware and data storage media for further analysis by law enforcement or the probation officer based upon reasonable suspicion that a violation of a condition of supervision or unlawful conduct by the person has or is about to occur.

I acknowledge that I have received a copy of these directives and that they have been explained to me. I understand that I must comply with these directives and any violation may be reported to the Court and may result in adverse action.

EXHIBIT D

Amended Standing Order

In re United States v. Boles (W.D.N.Y. Mar. 22, 2019) (Geraci, C.J.)

UNITED STATES DISTRICT COURT
FILED
MAR 22 2019
MARY C. LOEWENGUTH, CLERK
WESTERN DISTRICT OF NY

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

IN RE: *United States v. Boles*

AMENDED STANDING ORDER

In *United States v. Boles*, 914 F.3d 95 (2d Cir. 2019), the Second Circuit held that the standard "risk" condition of supervised release is vague and affords too much discretion to the probation officer. The United States District Court for the Western District of New York currently uses a standard condition (number 12) that is worded identically. In light of the *Boles* decision, the United States District Court for the Western District of New York will amend the Judgment and Commitment order in all criminal cases in which a term of probation or supervised release is imposed by removing the standard "risk" condition and replacing it with the following language:

> *If the court determines in consultation with your probation officer that, based on your criminal record, personal history and characteristics, and the nature and circumstances of your offense, you pose a risk of committing further crimes against another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction. The probation officer may contact the person and confirm that you have notified the person about the risk.*

IT IS SO ORDERED.

Dated: March 22, 2019
Rochester, New York

HON. FRANK P. GERACI, JR.
Chief Judge
United States District Court